

SENATE No. 1160

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for the improvement of required standards of Clerk Magistrates.

PETITION OF:

NAME:

Vincent Dixon

DISTRICT/ADDRESS:

SENATE No. 1160

By Mr. Lewis (by request), a petition (accompanied by bill, Senate, No. 1160) of Vincent Dixon, for legislation to provide for the improvement of required standards of Clerk Magistrates. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1032 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for the improvement of required standards of Clerk Magistrates.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The Massachusetts General Laws are hereby amended by inserting the
2 following new chapter:

3 An Act to provide for the Improvement of Required Standards of Clerk Magistrates.

4 1.) Massachusetts, having developed a unique system of Clerk Magistrates, has found
5 certain inconsistencies, in this system. While this system, under various reviews, may experience
6 significant alteration, few voices likely are opposed to the improvement of standards, held by
7 those individuals appointed to these positions.

8 2.) Therefore, this Statute, establishes, and encourages, a particular additional educational
9 standard: All Clerk Magistrates, appointed after the implementation of this Act, shall have proof
10 of graduation, with an earned degree, from an accredited graduate Law School.

11 In addition, current Clerk Magistrates, shall be encouraged to earn a graduate Law
12 Degree, from an accredited Law School, if they do not have one. If they do so, within seven
13 years of the implementation of this statute, they may receive a ten-percent upward incentive
14 bonus, for having done so; since doing so, may benefit themselves, and the public respect for the
15 legal system.

16 3.) All individuals, meeting the requirements of this Act, shall receive additional training,
17 and regular update training, on a yearly basis, as specified in such needed regulations, as the
18 Attorney General, shall create, and monitor, in conjunction with the relevant supervising justices,
19 of each appropriately defined judicial system, in the Commonwealth.